

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

CHINA UNITED LINES, LTD., *Complainant*

v.

AMAZON.COM SERVICES LLC; AMAZON LOGISTICS INC.;
AND BEIJING CENTURY JOYO COURIER SERVICE CO., LTD.,
Respondents.

DOCKET NO. 25-04

Served: June 12, 2026

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER ON PENDING MOTIONS

I. OVERVIEW

A. Background

Complainant China United Lines, Ltd. (“China United”), an ocean common carrier, alleges in its amended complaint violations of the Shipping Act of 1984 (“Shipping Act”) by Respondents Amazon.com Services LLC (“Amazon”), a shipper, and two non-vessel operating common carriers (“NVOCCs”): Amazon Logistics, Inc. (“Amazon Logistics” or “ALI”), and Beijing Century Joyo Courier Service Co., Ltd. (“Beijing Century” or “BCJ”).

Respondents filed a motion to dismiss which was denied as to Count I and granted as to Counts II, III, IV, and V. The remaining count alleges a violation of section 41102(a). Respondents deny the allegations and raise a number of affirmative defenses, including that “Amazon’s practices do not constitute ‘false billing, false classification, false weighing, false report of weight, false measurement, or any other unjust device or means.’” Answer at 10.

Complainant has filed five discovery motions: for an order to remove Attorneys’ Eyes Only designations; for a protective order precluding deposition topic 4; to compel corporate testimony; to compel further responses regarding requests for production; and to compel production of documents improperly withheld as privileged. The parties also filed a joint status report with proposed schedule. The pending motions will be addressed before discussing the schedule.

A number of disputes stem from a disagreement about the merits of the proceeding and specifically, what constitutes any other unjust or unfair device or means under section 41102(a) of the Shipping Act. China United’s theory of its case has changed since the order partially granting the motion to dismiss. It is not clear that China United’s current theory states a Shipping

Act claim. That issue is not decided because it is not briefed as these are discovery motions. There may be legal authority that supports China United's arguments and when that is provided, it will be considered. The parties are required to file a joint status report with a proposed schedule for completing discovery and resolving the proceeding.

B. Relevant Law

Section 41102(a) states that a "person may not knowingly and willfully, directly or indirectly, by means of false billing, false classification, false weighing, false report of weight, false measurement, or any other unjust or unfair device or means, obtain or attempt to obtain ocean transportation for property at less than the rates or charges that would otherwise apply." 46 U.S.C. § 41102(a). Proving a § 41102(a) claim requires three elements: (1) knowing and willful conduct; (2) through which, either "directly or indirectly," by means of the actions enumerated in the statute or through "any other unjust or unfair device or means;" (3) respondent obtained or attempted to obtain ocean transportation at lesser rates. *Muhammad Rana v. Michelle Franklin D.B.A. "The Right Move," Inc.*, Docket No. 19-03, 5 F.M.C.2d 7, 2022 WL 1744905, at *7 (FMC May 25, 2022); *see also OC Int'l Freight, Inc.*, FMC Docket. No. 12-01, 2014 WL 5316336, at *4 (FMC July 31, 2014).

As explained by the Eleventh Circuit:

It is undisputed that fraud or concealment is a necessary ingredient in the proof of an unjust or unfair device or means. *Capitol Transportation, Inc. v. United States*, 612 F.2d 1312 (1st Cir. 1979). It is such fraud or concealment that in fact makes the practice unjust or unfair. Whether an act constitutes an unfair or unjust device under § 16 depends on its similarity to false billing, false classification or the other prohibited conduct. *Hohenberg Brothers Co. v. Federal Maritime Commission*, 316 F.2d 381 (D.C. Cir.1963).

U.S. v. Open Bulk Carriers, 727 F.2d 1061, 1064 (11th Cir. 1984).

The Commission's Rules permit discovery "regarding any nonprivileged matter that is relevant to any party's claim or defense." 46 C.F.R. § 502.141(e)(1).

On motion or on its own, the presiding officer may limit the frequency or extent of discovery otherwise allowed by these rules if the presiding officer determines that:

- (A) The discovery sought is unreasonably cumulative or duplicative, or can be obtained from some other source that is more convenient, less burdensome, or less expensive;
- (B) The party seeking discovery has had ample opportunity to obtain the information by discovery in the action; or
- (C) The burden or expense of the proposed discovery outweighs its likely benefit, considering the needs of the proceeding, the amount in controversy, the parties'

resources, the importance of the issues at stake in the action, and the importance of the discovery in resolving the issues.

46 C.F.R. § 502.141(e)(2)(ii).

The Commission's Rules permit the presiding officer to "issue an order to protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense." 46 C.F.R. § 502.141(j). Commission Rules also permit the Presiding Officer to issue an order requiring "that a trade secret or other confidential research, development, or commercial information not be disclosed or be disclosed only in a specified way." 46 C.F.R. § 502.141(j)(1)(vii). Rule 12 of the Commission's Rules states that the Federal Rules of Civil Procedure will be followed in instances that are not covered by the Commission's Rules, to the extent that application of the Federal Rules is consistent with sound administrative practice. 46 C.F.R. § 502.12.

II. PENDING MOTIONS

A. Complainant's Motion for Order to Remove Attorney's Eyes Only Designations

On December 10, 2025, China United filed a motion seeking an order instructing Amazon to remove Attorneys' Eyes Only ("AEO") designations from 109 documents that it produced in discovery. China United asserts that the documents contain "stale information from 2022 and 2023, with no current commercially sensitive value, and so there is no basis for Amazon's restriction on China United's lawyers' ability to share these documents with the managers at China United." AEO Motion at 2.

On December 17, 2025, Respondents filed their opposition and a motion for confidential treatment, asserting that competitor rate information is not relevant and "China United has made no showing that its business personnel need access to this information to litigate this case." AEO Opposition at 1. Respondents also filed a request for confidential treatment of attachments F-H to the John Longstreth declaration in support of the AEO Opposition. The confidentiality request is reasonable and is GRANTED.

On December 29, 2025, China United filed a reply asserting that "Amazon is not entitled to litigate the merits of its case by discovery motion" and that the motion is procedurally and substantively proper. AEO Reply at 1. China United's reply is accepted and considered.

The AEO material includes competitively sensitive information. China United argues that it is not a competitor of Amazon. AEO Motion at 7. Amazon contends that the documents contain "commercially sensitive contract rates and capacity commitments from third-party ocean carriers—direct competitors of China United." AEO Opposition at 1. It is not the relationship of the parties that should be the focus. Rather, to ensure a competitive marketplace, it is appropriate to protect commercially sensitive contract rates and capacity commitments from direct competitors. Moreover, that the information comes from non-parties as opposed to parties makes it more likely to be entitled to confidentiality, not less. The competitively sensitive nature of the information weighs in favor of protecting the information.

China United alleges that the information is stale. AEO Motion at 6. Amazon responds that "sensitive commercial information concerning costs and pricing has continued to be

protected because it can be used to predict future strategies and practices,” and would provide China United with an “unfair competitive advantage over these carriers.” AEO Opposition at 6. While at some point, this information may become stale, that point has not been clearly reached yet.

China United contends that the information is necessary to prosecute the case, arguing that the inability to share the information with China United managers: “1. Hinders counsel’s ability to prepare for depositions and prepare the case, 2. Impairs the ability to evaluate damages, and 3. Obstructs meaningful settlement discussions.” AEO Motion at 8. Amazon asserts that China United has not shown why business personnel would need to review the information, considering that China United’s in-house counsel already has access to it. AEO Opposition at 8. In reply, China United argues that it “is entitled to discover whether other carriers who offered lower rates than China United may have breached similar non-disclosure terms with Amazon, but with no repercussions from Amazon because their rates were deemed advantageous for Amazon.” AEO Reply at 2.

Essentially, it appears that China United is arguing selective enforcement – that Amazon only enforced contractual requirements, specifically invoking breach of confidentiality to avoid liquidated damages, based in part on whether rates were advantageous. This goes to the merits of the proceeding which have not been briefed and which it is too early to decide. However, this was not the argument made in the opposition to the motion to dismiss and it is not clear that even if Amazon was selectively enforcing the service contract confidentiality requirement that this would violate section 41102(a) of the Shipping Act.

For purposes of the discovery motion, it is not clear how rate and capacity information from non-party carriers would impact depositions, damages, or settlement of this case, involving whether Amazon obtained or attempted to obtain ocean transportation *from China United* at less than the rates or charges that would otherwise apply. Unlike section 41102(c), section 41102(a) does not require a practice or evidence that claimed acts are occurring on a normal, customary, and continuous basis. Therefore, the relevance of this information appears limited.

The AEO designation was an appropriate compromise position. According to the motion, Amazon made an initial production with “many redactions” but then made a re-production with some redactions removed and including the attorneys’ eyes only designations. AEO Motion at 5. Amazon’s decision to not redact or withhold the information, but to produce it with the AEO designation, was an appropriate compromise that provided counsel for China United with discoverable information while protecting the commercially sensitive information from a direct competitor. Accordingly, the AEO Motion is DENIED.

B. Complainant’s Motion for a Protective Order Precluding Deposition Topic 4

On January 11, 2026, China United filed a motion seeking a protective order precluding Respondents’ video deposition topic 4, which seeks “CUL’s factual basis for any contention that Amazon engaged in any act of fraud or concealment with respect to CUL.” Depo. Motion at 2. China United alleges that topic 4 is a contention interrogatory posed as an improper deposition topic and is unduly burdensome and disproportionate. Depo. Motion at 5-7.

On January 20, 2026, Respondents filed their opposition, alleging that China United refused to answer a contention interrogatory regarding whether it has any factual information to support a showing of fraud or concealment; there is no basis for China United's position that it can shield its corporate witness from testifying to the factual basis for a necessary element of its claim; and the attempt to use its motion to argue the merits of its case is improper. Depo. Opposition at 1-7.

The Commission's Rule regarding the scope of interrogatories explicitly permits contention interrogatories, stating that an "interrogatory is not objectionable merely because it asks for an opinion or contention that relates to fact or the application of law to fact, but the presiding officer may order that the interrogatory need not be answered until designated discovery is complete, or until a prehearing conference or some other time." 46 C.F.R. § 502.145(a)(2). This language is consistent with FRCP 33(a)(2).

Particularly in this case, where Complainant's theory of the case seems to have changed, requesting the basis of their contention that "Amazon engaged in any act of fraud or concealment with respect to CUL" is reasonable. Interrogatories "requesting 'every fact' in support of a party's legal contentions are generally considered to be overly broad and unduly burdensome. A more reasonable request would be limited to the identification of the material or principle facts and documents supporting the legal contentions." *Odyssea Stevedoring of Puerto Rico, Inc. v. Puerto Rico Ports Auth.*, Docket No. 02-08, 29 S.R.R. 1392, 1394 (ALJ Dec. 12, 2002) (citations omitted).

Amazon seems to assert that interrogatory responses would be an inadequate substitute for deposition testimony. Depo. Opposition at 4-5. Given the procedural posture at this point, an interrogatory response will be more efficient than scheduling a deposition. Amazon has established that it is entitled to a response but not that the response must be by deposition.

Therefore, China United's request for a protective order for the deposition is GRANTED under the condition that China United supplement its interrogatory response and provide the material or principle facts and documents supporting the contention that Amazon engaged in any act of fraud or concealment with respect to it.

C. Complainant's Motion to Compel Corporate Testimony

On February 4, 2026, China United filed a motion to compel corporate testimony from Respondents. These topics seek "testimony regarding Amazon's publication of the parties' relationship (which occurred before China United did so), Amazon's practices and policies relating to use of its name and marketing carrier relationships, and whether Amazon has terminated for cause any other carrier relationship(s) for using Amazon's name in the way China United did" which China United asserts "bear directly on whether Amazon's ultimate decision to terminate for cause was based on a genuine concern for the use of its name, or an unfair and unjust device used to escape Amazon's commitments in the Service Contract." Corp. Testimony Motion at 2.

On February 9, 2026, Respondents filed their opposition. Amazon contends that its marketing practices and interactions with vendors other than China United is not related to any

claim or defense and is therefore not proportional to the needs of the case and is unnecessarily burdensome. Corp. Testimony Opposition at 2-3. Amazon further asserts that it offered stipulations to certain facts; information regarding Amazon's contractual dealings with other third-party vendors is irrelevant; and Amazon's senior executives have already testified on these topics. Corp. Testimony Opposition at 6-9.

On February 13, 2026, China United filed a motion seeking leave to file a reply in support of its motion to compel corporate testimony to which Amazon objected. Leave is granted and the reply is considered. China United argues that facts may be relevant to both the contractual dispute pending in federal court and to a Shipping Act claim; that marketing practices and information regarding similar contracts is directly relevant; and that cited testimony fails to cure deficiencies. Corp. Testimony Reply at 1-4.

The remaining claim alleges a violation of Section 41102(a), which states that a "person may not knowingly and willfully, directly or indirectly, by means of false billing, false classification, false weighing, false report of weight, false measurement, or any other unjust or unfair device or means, obtain or attempt to obtain ocean transportation for property at less than the rates or charges that would otherwise apply." 46 U.S.C. § 41102(a). Proving a § 41102(a) claim requires three elements: (1) knowing and willful conduct; (2) through which, either "directly or indirectly," by means of the actions enumerated in the statute or through "any other unjust or unfair device or means;" (3) respondent obtained or attempted to obtain ocean transportation at lesser rates. *Muhammad Rana v. Michelle Franklin D.B.A. "The Right Move," Inc.*, Docket No. 19-03, 5 F.M.C.2d 7, 2022 WL 1744905, at *7 (FMC May 25, 2022); *see also OC Int'l Freight, Inc.*, FMC Docket. No. 12-01, 2014 WL 5316336, at *4 (FMC July 31, 2014).

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It is not clear how Amazon's marketing and confidentiality restrictions relate to the remaining violation. They differ significantly from the listed concerns of false billing, false classification, false weighing, false report of weight, and false measurement, which all relate to information provided about the cargo tendered. Similarly, it is not clear how the facts sought relate to an unjust or unfair device or means. Additionally, the facts requested by the motion to compel do not involve transportation factors, rather, they relate to marketing and confidentiality restrictions in the service contract. Whether the confidentiality provisions of the service contract were violated and whether or not the service contract was terminated for cause may be more appropriately resolved by the related federal proceeding as it is not clear they involve elements peculiar to the Shipping Act. *Cargo One, Inc. v. Cosco Container Lines Co., Ltd*, 2000 WL

1648961, at *14 (FMC Oct. 31, 2000); *see also* 46 U.S.C. § 40502(f). Accordingly, the motion to compel corporate testimony is DENIED.

D. Complainant's Motion to Compel Further Responses to Requests for Production

On February 13, 2026, China United filed a motion to compel further responses regarding requests for production of documents numbers 48-51, arguing that the service contracts (and related contractual documents) Amazon entered into with other ocean carriers will show whether any of those ocean carriers were terminated, and under what circumstances or, alternatively, “may show that Amazon uses obscure provisions within its contracts to avoid its obligations.” RFP Motion at 2-3.

On February 20, 2026, Respondents filed their opposition, arguing that the “bases on which China United purports to seek discovery about other carriers are unrelated to establishing the fraud, deceit or concealment as to China United necessary to establish a section 41102(a) claim” and that “China United cites no law as to what an ‘obscure’ contractual provision might be or why a party may not properly rely on one.” RFP Opposition at 3.

It is not clear how a provision in the service contract could be considered so obscure that it equates to fraud or concealment or otherwise is relevant to the prohibitions in Section 41102(a). As stated previously in this proceeding, “The parties had access to the terms of their agreements and knew what was in them.” Order Partially Granting Motion to Dismiss at 11. Further, as explained above in relation to the AEO Motion, non-party service contracts and contractual negotiations contain commercially sensitive information that should only be disclosed if necessary. Here, it is not clear how Amazon’s contracts with non-parties would be relevant to whether Amazon obtained or attempted to obtain ocean transportation *from China United* at less than the rates or charges that would otherwise apply. The motion to compel further responses to requests for production is DENIED.

E. Complainant's Motion to Compel Production of Documents Improperly Withheld as Privileged

On February 14, 2026, China United filed a motion to compel production or conduct an *in camera* review of documents improperly withheld as privileged, specifically documents regarding Amazon’s decision to terminate China United’s service contract for cause. Privilege Motion at 1.

On February 23, 2026, Respondents filed their opposition contending that the motion should be denied because Amazon properly asserted privilege and because the motion is untimely and improper. Privilege Opposition at 2.

The Commission has applied the attorney-client privilege previously to communications regarding the negotiation and filing of an agreement and status of an agreement, explaining:

The attorney-client privilege essentially provides that a client may refuse to disclose and prevent others from disclosing confidential communications made between the lawyer and client while seeking legal advice. *See* 3 Jack B. Weinstein & Margaret A. Berger, Weinstein's Federal Evidence, § 503.10 (Joseph M.

McLaughlin, ed., Matthew Bender 2d ed. 1997). The Supreme Court has emphasized the public policy underlying the attorney-client privilege - “that sound legal advice or advocacy serves public ends and that such advice or advocacy depends upon the lawyer's being fully informed by the client.” *Upjohn v. United States*, 449 U.S. 383, 389 (1981). In addition, “the purpose of the attorney-client privilege is to promote freedom of consultation between client and lawyer by eliminating fear of subsequent compelled legal disclosure of confidential communications.” *United States v. Suarez*, 820 F.2d 1158, 1160 (11th Cir. 1987).

Ocean Common Carrier Status of Shanghai Hai Hua Shipping Co., Ltd. (HASCO) and SNL/HASCO Cross Space Charter and Sailing Agreement: FMC Agreement No. 011807, Docket No. 02-09, 2003 WL 131165, at *13 (FMC Jan. 13, 2003); *see also Exclusive Tug Franchises - Marine Terminal Operators Serving the Lower Mississippi River*, Docket No. 01-06, 2002 WL 33836159, at *8 (FMC April 12, 2002).

Amazon’s privilege log identifies documents seeking, transmitting, or reflecting legal advice. Exhibit B to February 13, 2026, Bryce Cullinane declaration. China United relies on testimony from Amazon’s corporate representative that its decision to terminate the contract for cause was a business decision, not a legal decision. This does not mean, however, that legal input was not required. China United suspects that some of the material may not be entitled to privilege but there is no sound basis for that suspicion presented. Accordingly, the privilege motion is DENIED.

III. AMENDED SCHEDULE

On March 13, 2026, Complainant filed a motion for a ruling on the pending motions to compel, prior to a trial scheduled in a related proceeding. This motion is DISMISSED as moot.

On March 16, 2026, the parties filed a joint status report with proposed briefing schedule. On April 29, 2026, Respondent filed a supplement to the joint status report, reiterating the request for summary disposition of the amended complaint. On May 6, 2026, China United filed a response to Respondent’s JSR Supplement, requesting that the supplement be disregarded.

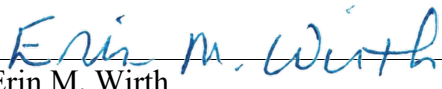
China United provides a proposed briefing schedule and argues that it should be allowed to present its case on the merits and that it is “prepared to submit evidence of Amazon’s fraud, deceit and concealment, which it utilized to access lower-than-otherwise applicable rates for carriage of containerized cargo.” JSR at 2. China United requests an oral hearing in conjunction with the merits briefing but does not include such a hearing in its proposed schedule. JSR at 2-3.

Respondents contend that this case is suitable for summary disposition to resolve or narrow issues as “discovery has not disclosed any evidence in support of the showing it must make of fraud, deceit, or concealment to obtain lower rates.” JSR at 3. Respondents propose a schedule for filing of a motion for summary disposition.

Given the findings above, additional time will be required for China United to supplement its response to the contention interrogatory. This response will be helpful in determining the next steps.

The parties shall file a joint status report that proposes a schedule for next steps, including completing discovery. If an in-person hearing is requested, the parties should indicate why that is necessary and should proposed a schedule for filing prehearing briefs, identify appropriate days for a hearing, and a schedule for filing post-hearing briefs. The parties should provide an estimate of the number of witnesses and length of testimony expected. If it would be helpful to resolve a legal issue in the case on the basis of undisputed material facts, the parties may include a deadline for dispositive motions prior to the deadline for filing prehearing briefs.

It is hereby ORDERD that the parties file a joint status report with a proposed schedule by July 6, 2026.


Erin M. Wirth
Chief Administrative Law Judge